

Gulzar Ahmad v. Electricity Ombudsman

High Court of Judicature at Allahabad · Single Judge · 6 September 2017 · WRIT - C No. 40986 of 2017 · WRIT - C No. 40986 of 2017 · **Writ petition dismissed; Ombudsman order and bill undisturbed.**

HEADNOTE

A consumer's writ against an Electricity Ombudsman order dated 26 April 2017 and a July 2017 demand of Rs.3,39,275 was dismissed. The petitioner pleaded that his connection had remained disconnected from 15 August 2010 to 18 September 2015 and that the demand violated Clause 6.2 of the Uttar Pradesh Electricity Supply Code, 2005. The Court held that the petition raised disputed questions of fact not triable under Article 226, that the petitioner had not deposited the bill properly, and that he had been caught in theft of electricity; finding the authorities had proceeded as per law and no infirmity in the Ombudsman's order, it refused interference.

FACTUAL SUMMARY

Gulzar Ahmad challenged the Electricity Ombudsman's order dated 26 April 2017 and a July 2017 electricity bill of Rs.3,39,275. He claimed his connection remained disconnected from 15 August 2010 to 18 September 2015, so he had no liability for that period, and that the demand violated Clause 6.2 of the Uttar Pradesh Electricity Supply Code, 2005. The licensee contended he occupied a two-storey building, had taken a connection in 2000 but deposited only Rs.25,000, and had been caught in theft of electricity.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

writ against Ombudsman billing order

HOLDING

A writ challenging an Electricity Ombudsman order and a subsequent electricity demand on the plea that charges for a disconnected period violated Clause 6.2 will not be entertained where the petition raises disputed questions of fact that cannot be adjudicated under Article 226, the consumer has not deposited the bill properly, and the consumer was caught in theft of electricity; if the authorities have proceeded as per law, the writ is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.2 BARRED RECOVERY FOR THE DISCONNECTED PERIOD 15.08.2010–18.09.2015, AND WHETHER THE RS.3,39,275 DEMAND WAS EXCESSIVE ON MERITS.

The Court declined to try those disputed facts in writ jurisdiction. ¶ 1